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Case Number: 25STCV26202 Hearing Date: September 3, 2026 Dept: 735

Renee Mann,

et al. v. Law Offices of Mark C. Fields, A Professional Corporation

Defendant Law Offices of Mark C.

Fields, A Professional Corporation's Motion to Compel Arbitration; Plaintiff

Renee Mann's Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request for Monetary Sanctions

BACKGROUND

In

September 2025, plaintiffs Renee Mann ("Mann"), Chloe Botz ("Chloe"), Charlotte Botz ("Charlotte"), and Fiona Botz ("Fiona") filed a complaint against defendants Law Offices of Mark C. Fields, A Professional Corporation arising from alleged professional negligence. (Given the common surname among the Botz plaintiffs, the court will refer to Charlotte Botz, Chloe Botz, and Fiona Botz by their first names where appropriate and necessary to avoid confusion.

Defendant

filed a motion to compel arbitration.

Plaintiff

Mann filed a motion to compel Defendant to serve further responses, without objection, to plaintiff Mann's requests for production of documents, set two, and request for monetary sanctions.

MOTION TO COMPEL ARBITRATION

Objections

Defendant

objects to the sur-reply of Plaintiffs. Plaintiffs cite *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522 in support of their contention that a sur-reply is warranted. The court finds that Plaintiffs' reliance on *Jay* is unavailing because that case did not address the issue of a sur-reply. The court sustains the objection of Defendant to the sur-reply of Plaintiffs.

Request

for Judicial Notice

The

court takes judicial notice of the existence of court filings attached to the declaration of Farzad Seyfnia. (Evid. Code §§ 452, 453.)

Discussion

Existence

of an Arbitration Agreement Between Plaintiff Mann and Defendant

The party moving to compel arbitration has the initial burden to prove the existence of an arbitration agreement by a preponderance of the evidence. The Retainer Agreement provides in part:

"In the event of a dispute arising out of this Agreement, we both agree to binding arbitration in Los Angeles before ADR Services, Inc. pursuant to their Arbitration Rules. The arbitrator will have discretion to award attorney's fees to the prevailing party, including in the event the Firm is the prevailing party to award attorney's fees based on the hourly rate (to be determined by the arbitrator) of Mark C. Fields."

(Declaration of Mark C. Fields Filed

October 29, 2025 ("Fields Decl."), Ex. A at pp. 4-5.)

Plaintiff Mann signed the Retainer

Agreement, which contains the arbitration provision.

(Fields Decl., Ex. A at p. 5.) The court finds that Defendant has met its burden in showing the existence of an arbitration agreement.

Scope
of the Arbitration Agreement

Plaintiffs

assert that the arbitration provision does not cover plaintiff Mann's claim for professional negligence. The court finds otherwise. The arbitration provision is worded broadly to apply to "a dispute arising out of [the] [Retainer] Agreement" (Fields Decl., Ex. A at p. 4.) The court has reviewed the allegations of the first cause of action for negligence, which plaintiff Mann asserts against Defendant. (Compl. ¶¶ 95-110.) Although Plaintiffs allege the failure of Defendant to comply with Bus. & Prof. Code § 6147 and the alleged wrongs of Defendant as it concerns third-party payment of fees, among other actions, Plaintiffs allege that "Defendant failed to provide Plaintiff [Mann] with any billing statements for legal services after October 30, 2020, until May 2, 2023" (Compl. ¶ 100.) The Retainer Agreement required Defendant to provide plaintiff Mann with "monthly statements for hourly charges and costs until the conclusion of all cases" (Fields Decl., Ex. A. at p. 2.) Thus, the court finds that the arbitration provision applies as it concerns the first cause of action. Indeed, Plaintiffs allege that plaintiff Mann is entitled to recover attorney's fees pursuant to the attorney's fees provision in the Retainer Agreement. (Compl. ¶ 110.) The dispute as to professional negligence arises, in part, out of the arbitration provision and therefore is subject to arbitration.

There
is No Valid Agreement to Arbitrate with the Botz Plaintiffs

The

Botz Plaintiffs contend that they never agreed to arbitrate. Defendant contends that the doctrine of equitable estoppel should be invoked to compel the Botz Plaintiffs to arbitrate their claim for declaratory relief against Defendant. For equitable estoppel to apply, a party seeking to compel arbitration must show that the causes of action are intimately founded in and intertwined with the underlying contract obligations. A plaintiff who relies on contract terms to assert a cause of action against a defendant may be barred, through the doctrine of equitable estoppel, from avoiding application of the arbitration provision.

The

Botz Plaintiffs only assert the third cause of action for declaratory relief against Defendant. (Compl. ¶¶ 121-130.) Plaintiffs allege that a dispute between the Botz Plaintiffs and Defendant has arisen and exists as to the right of Defendant to attorney's fees. (Compl. ¶ 122.) Plaintiffs allege that Defendant never represented the Botz Plaintiffs. (Compl. ¶ 123.) Plaintiffs request, inter alia, that the court make a finding that no valid or enforceable Retainer Agreement exists between the Botz Plaintiffs and Defendant. (Compl. ¶ 129.)

The

court finds that equitable estoppel cannot be invoked to compel the Botz Plaintiffs to arbitrate their claim for declaratory relief against Defendant.

First,

the third cause of action for declaratory relief does not rely on the Retainer Agreement as a factual basis for the claim. Rather, the third cause of action for declaratory relief seeks a judicial determination that the Retainer Agreement is unenforceable. (Compl. ¶ 129.) Thus, equitable estoppel does not apply as the Botz Plaintiffs do not rely upon the Retainer Agreement to establish their cause of action.

Second,

the Botz Plaintiffs only signed a Conflicts Waiver and Consent to Agreement form, which does not contain an arbitration provision. (Fields Decl., Ex. A at pp. 6-8.) That document explicitly states that Defendant is representing plaintiff Mann and is silent on the representation of the Botz Plaintiffs. (Id., Ex. A at pp. 6-7.) The Botz Plaintiffs never intended to agree to arbitrate any disputes with Mr. Fields or his firm. (Charlotte Decl. ¶ 5; Chloe Decl. ¶ 6; Fiona Decl. ¶ 5.) For the terms of another document to be incorporated into the document executed by the parties the reference must be clear and unequivocal. Here, there is no clear and unequivocal reference to the arbitration provision in the Conflicts Waiver and Consent to Agreement.

Defendant

contends on reply that the declaratory relief claim of the Botz Plaintiffs is speculative and cannot be used to avoid arbitration. (Reply at pp. 5-6.) To the extent that Defendant takes issue with the legal sufficiency of such claim, a reply brief is not the proper mechanism to challenge such claim.

In

sum, the court finds that there is no agreement to arbitrate between the Botz Plaintiffs and Defendant. The court therefore does not compel the Botz Plaintiffs to arbitrate their declaratory relief claim against Defendant.

Rescission
of the Retainer Agreement

Plaintiffs

contend that the motion should be denied as grounds exist for rescission of the Retainer Agreement. Plaintiffs allege that the provision of the Retainer Agreement allowing "Defendant to charge a contingency fee on recoveries belonging to Plaintiff [Mann's] adult children . . . who were not clients of Defendant is invalid, improper, and unenforceable under California law." (Compl. ¶ 23.) Defendant "failed to adequately disclose how costs and disbursements would affect Plaintiffs' net recovery" (Compl. ¶ 79.) Plaintiff Mann alleges, inter alia, that the contingency fee provisions of the Retainer Agreement fail to comply with Business and Professions Code Section 6147. (Compl. ¶ 138.) Plaintiff Mann seeks rescission of the contingency fee provisions of the Retainer Agreement. (Compl. ¶ 140.)

Initially,
the court finds that Plaintiffs' reliance on Sheppard, Mullin, Richter & Hampton, LLP v. J-M Manufacturing Co., Inc. (2018) 6 Cal.5th 59 is unavailing because that case involved the unenforceability of an entire agreement. Here, on the other hand, Plaintiffs allege that only portion of the Retainer Agreement is unenforceable. The court finds that the purported illegality of the contingency fee provision of the Retainer Agreement is not a bar to arbitration. When the alleged illegality goes to only a portion of the contract that does not include the arbitration agreement, the entire controversy, including the issue of illegality, remains arbitrable. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 30.) Here, the rescission claim of plaintiff Mann is only directed at the contingency fee portion of the Retainer Agreement. Accordingly, under Moncharsh the court may compel arbitration.

Unconscionability

Unconscionability

requires both procedural and substantive unconscionability using a sliding scale.

A. Procedural Unconscionability

The court considers the factors of oppression and surprise in determining whether a contract is procedurally unconscionable. Oppression refers to inequality of bargaining power, which cuts off meaningful negotiation. Surprise refers to the concealment of the agreed-upon terms in a lengthy form drafted by the party seeking to enforce them.

The court finds that the arbitration provision is procedurally unconscionable as it concerns plaintiff Mann. Plaintiff Mann was not aware of the arbitration provision and attests to not understanding the applicability of the provision. (Mann Decl. ¶ 12.) Plaintiff Mann did not have the opportunity to negotiate, propose, or discuss any change to the arbitration provision. (Mann Decl. ¶ 13.) Thus, the court finds that there exists a minimal level of procedural unconscionability.

B. Substantive Unconscionability

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results so as to shock the conscience. The paramount consideration in assessing substantive unconscionability is mutuality. Despite the argument of Plaintiffs to the contrary, the court finds that the “clause expos[ing] the client to a fee award based on the hourly rate (to be determined by the arbitrator) of Mark C. Fields” is not substantively unconscionable. (Opp’n at p. 15:10-11.) The provision concerning fees is not unfairly harsh or one-sided as the prevailing party in arbitration is entitled to attorney’s fees. (Fields Decl., Ex. A at pp. 4-5.) Therefore, the court finds that the arbitration provision does not shock the conscience and is not substantively unconscionable.

Accordingly, the court finds that the arbitration provision is not unconscionable.

The
Possibility of Conflicting Rulings

Given

that the Botz Plaintiffs are not parties to the Retainer Agreement and are not subject to arbitration, the court credits the argument of Plaintiffs and finds that there exists a possibility of conflicting rulings as to the validity of the Retainer Agreement. The court will not deny the motion on such grounds. Instead, the court opts to order arbitration among the parties who have agreed to arbitration and stay the pending court action pending the outcome of the arbitration proceeding.

Conclusion

as to the Motion to Compel Arbitration

The

court grants in part Defendant's motion to compel arbitration.

The

court compels the claims of plaintiff Mann only pursuant to the arbitration provision in the Retainer Agreement. As such, the court orders the first, second, fourth, and fifth causes of action in the complaint compelled to arbitration as to plaintiff Mann only.

The

court denies the request of Defendant to compel the claim of the Botz Plaintiffs to arbitration.

The

court stays the third cause of action asserted by the Botz Plaintiffs pending the conclusion of arbitration. (Code Civ. Proc. § 1281.4.)

MOTION TO COMPEL FURTHER RESPONSES TO RPDs AND REQUEST FOR MONETARY SANCTIONS

Plaintiff

Mann seeks an order compelling Defendant to serve further, full, and complete verified responses, without objection, and to produce all documents responsive to plaintiff Mann's requests for production of documents, set two. Plaintiff

Mann also requests the imposition of monetary sanctions in the sum of \$5,480.00 against Defendant and its counsel of record, jointly and severally. As indicated above, the court has granted Defendant's motion to compel arbitration in part. A trial court cannot

rule on discovery motion after a request to compel arbitration has been granted and the action has been stayed. Accordingly, the motion to compel further responses is taken off calendar.

Conclusion

as to Further Responses

Plaintiff

Mann's motion to compel further responses to requests for production of documents, set two, and request for monetary sanctions is off calendar.

Defendant

shall give notice of this ruling in its entirety.